



File No.: EXP202213626

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by ONEY SERVICIOS FINANCIEROS EFC, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated October 23, 2023, and based on the following

FACTS

FIRST: On October 23, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202213626, by virtue of which ONEY SERVICIOS FINANCIEROS EFC, S.A. was imposed a fine of €50,000 (fifty thousand euros) for infringement of Article 5.1.d) of the GDPR, classified under Article 83.5.a) of the GDPR.

This resolution, which was notified to the appellant on 24/10/2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00053/2023, the following were recorded:

FIRST. On 09/11/2022, a written complaint was received by the AEPD in which the complainant stated that in May 2022, the respondent initiated a monitoring procedure to claim an outstanding amount (derived from a credit card) and that after the procedure concluded, a ruling was issued on 21/06/2022 by the Court of First Instance No. 14 of ***LOCALIDAD.1 declaring the commission for non-payment abusive and null, "not being admissible to integrate as due capital amounts that were charged as an abusive clause"; in August, they communicated the assignment of the credit to Cabot, responding that they should not include her in ASNEF because the matter was judged and she did not owe that amount; despite this, she was included in the file, creating a problem for her as she needed credit and could not apply for it.

SECOND. A request for Card ***TARJETA.1 was submitted, which includes the personal and banking data of the complainant and her signature.

THIRD. A claim for a monitoring procedure was submitted by the respondent on 27/04/2022, before the Court of First Instance of ***LOCALIDAD.1, for the claim of an amount, plus interest, expenses, and costs.

FOURTH. An order dated 21/06/2022 issued by the Court of First Instance No. 14 of ***LOCALIDAD.1 is recorded, in which the dispositive part states:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

"It is declared null for abusive the claim for non-payment commission, determining such nullity the inadmissibility of the claim.

(...)"

The aforementioned resolution is recorded as notified on 01/07/2022.

FIFTH. A Credit Portfolio Sale Contract signed between the respondent and Cabot and formalized in Madrid on 18/07/2022 is recorded.

SIXTH. An Excel spreadsheet provided by the respondent shows the complainant's credit amounting to €758.11 and that this was subject to monitoring for abusive clauses, which, according to the respondent, is part of the Excel document on CD that was delivered to Cabot with the formalization of the assignment contract.

SEVENTH. An email dated 16/08/2022 from the complainant's lawyer to ONEY is recorded, in which it

is stated:

“(…)

On behalf of the complainant, I am pleased to contact you regarding a letter received about the assignment of credit rights.

I inform you that ONEY initiated a judicial procedure requesting said debt, a procedure that it lost before the Court of ***LOCALIDAD.1.

Therefore, my client owes nothing; on the contrary, it may be that you owe her for the abusive interest that was applied at that time, and this is not just said by this office, but also by the court.

It is for this reason that from this moment we inform you that since she owes nothing by court order, we request that you immediately remove the complainant from your files.

We also warn you that if you dare to include my client in ASNEF, the pertinent judicial actions will be initiated in defense of the rights that protect us.

(…)”.

EIGHTH. A payment request from EQUIFAX-IBERICA dated 09/09/2022 is recorded, indicating that:

“We inform you that on 08/09/2022, the entity CABOT SECURITISATION EUROPE LIMITED requested the registration in the ASNEF file of the following personal data related to the non-payment of the contract maintained with said entity

PRODUCT

OUTSTANDING AMOUNT

QUALITY

CREDIT CARDS

€780.80

HOLDER”

NINTH. In a document dated 27/01/2023, the respondent stated that:

“First.- The complainant, ..., signed a contract for card ***TARJETA.1 with Oney Servicios Financieros on March 11, 2008.

On July 18, 2022, through a private sale contract, elevated to public that same day before the Notary of the Illustrious College of Madrid Mr. A.A.A., Oney Servicios Financieros E.F.C. S.A.U. (hereinafter, ONEY) carried out the assignment of its credit to the entity Cabot Securitisation Europe Limited (hereinafter, CABOT), located at Edificio Delta Nova 4 Av. Manoteras, 46, Madrid – 28050.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/15

From that date, this entity acquired the status of new and sole creditor against several clients, including Ms. B.B.B. (now the claimant).

The aforementioned order was transferred by Oney to Cabot so that the buyer could carry out the necessary procedures regarding the claim of Ms. B.B.B.'s debt. In fact, at the time of formalizing the sale of the portfolio, Oney informed Cabot that this credit was a disputed credit. This is evidenced by the Excel spreadsheet attached to this statement of allegations as Document No. 1, which specifically states that the credit referred to the claimant was subject to an ongoing monitoring procedure. This extract is part of the Excel spreadsheet that was delivered on a CD to Cabot, before a notary, at the time of formalizing and signing the public deed of assignment of credits.

Second. - That in July 2022, the month in which the aforementioned credit assignment operation was carried out, ONEY excluded all clients who were part of this assignment from the solvency files in which they had been included. Specifically, ONEY proceeded to deregister Ms. B.B.B. from the mentioned solvency file of Experian on July 22, 2022 (as could be proven, if necessary, through a query to the Experian files).

(…)

THIRD: The appellant submitted on 11/17/2023, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on allegations made throughout the procedure and also that it acted diligently in rectifying the claimant's data in the file after the Order that declared certain

clauses regarding the interest applied to her debt as abusive and her disagreement with the aggravating circumstances applied in the appealed resolution.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds II to VII of the appealed Resolution, as transcribed below:

“II

The reported facts materialize in the inclusion of the personal data of the claimant in common credit information systems derived from a debt claimed in a monitoring procedure before the Court, whose resolution declared certain clauses as abusive, therefore there was no accuracy regarding the debt as it was not determined; subsequently, the debt, without being recalculated, is acquired by CABOT, who in turn includes the data in the delinquency file for the same amount, which is considered a supposed violation of the regulations on personal data protection.

Article 58 of the GDPR, Powers, establishes in its paragraph 2:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

III

The GDPR addresses in its Article 5 the principles that must govern the processing of personal data and mentions among them the principle of accuracy, stating that:

“1. Personal data shall be:

(...)

d) accurate and, where necessary, kept up to date; all reasonable measures shall be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay (‘accuracy’);

(...)”

What is stated in the aforementioned regulation must be related to Article 5, Accuracy of data, of the new Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), which establishes in its paragraph 1 that:

“1. In accordance with Article 5.1.d) of Regulation (EU) 2016/679, the data shall be accurate and, where necessary, kept up to date.

2. For the purposes provided for in Article 5.1.d) of Regulation (EU) 2016/679, the inaccuracy of personal data shall not be attributable to the data controller, provided that they have taken all reasonable measures to ensure that the inaccuracy is erased or rectified without delay, with respect to the purposes for which they are processed, when the inaccurate data:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/15

a) They would have been obtained by the responsible party directly from the affected individual.

b) They would have been obtained by the responsible party from a mediator or intermediary in the event that the applicable regulations for the sector to which the data controller belongs established the possibility of intervention by a mediator or intermediary who collects the data of the affected individuals in their own name for transmission to the responsible party. The mediator or intermediary shall assume the responsibilities that may arise in the event of communication to the responsible party of data that do not correspond to those provided by the affected individual.

c) They were processed by the responsible party after having been received from another responsible party by virtue of the exercise by the affected individual of the right to data portability in accordance with Article 20 of Regulation (EU) 2016/679 and the provisions of this organic law.

d) They were obtained from a public register by the responsible party."

In relation to this principle, Recital 39 of the GDPR indicates, among other issues, that: "(39) (...) to ensure that personal data is not kept longer than necessary, the data controller must establish deadlines for its deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data is rectified or deleted."

And Recital 71: "(...) in order to ensure fair and transparent processing in relation to the data subject, taking into account the specific circumstances and context in which personal data are processed, the data controller must use appropriate mathematical or statistical procedures for profiling, apply appropriate technical and organizational measures to ensure, in particular, that factors introducing inaccuracies into personal data are corrected and the risk of error is minimized, secure personal data in a way that takes into account the potential risks to the interests and rights of the data subject, and prevent, among other things, discriminatory effects on individuals based on race or ethnic origin, political opinions, religion or beliefs, trade union affiliation, genetic condition or health status or sexual orientation, or processing that leads to measures producing such effects."

IV

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total global annual turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/15

And in its article 72, it considers for the purposes of prescription that they are: "Very serious infringements:

1. In accordance with the provisions of article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following:

(...)

a) The processing of personal data in violation of the principles and guarantees established in article 5 of Regulation (EU) 2016/679.

(...)"

V

1. From the documentation in the file, it is evident that the respondent has violated article 5.1.d), principle of accuracy, in relation to article 5 of the LOPDGDD, Accuracy of data, by transferring the claimant's data to a third party, the purchaser of the credit, who in turn included them in the ASNEF file, linked to a debt over which there was a judicial dispute and whose subsequent ruling declared that it contained abusive interests, thus there was no certainty about it and it needed to be recalculated.

In relation to the aforementioned article and its update (which would be the manifestation of the principle of accuracy that is understood to be breached), it requires that “reasonable measures be taken to ensure that inaccurate personal data are erased or rectified without delay with respect to the purposes for which they are processed.”

That is to say, article 5.1.d) does not impose disproportionate measures to update the data, but rather reasonable ones, taking into account the available means and the purpose for which the data is used. This is also expressed in recital 39 of the GDPR, “(...) to ensure that personal data are not kept longer than necessary, the data controller must establish retention periods for their deletion or periodic review. All reasonable measures must be taken to ensure that inaccurate personal data are rectified or deleted.”

2. In the present case, the respondent, as a consequence of the claimant's failure to fulfill their payment obligations, owing the amount of €758.11, filed a monitoring procedure claim in accordance with articles 812 and following of the LEC for the recovery of the amount plus interest, expenses, and costs before the Court of First Instance of ***LOCALIDAD.1 on 27/04/2022, with the Court of First Instance No. 14 of ***LOCALIDAD.1 issuing an order on 21/06/2022 annulling certain commissions as abusive.

The aforementioned order states in its dispositive part that: “The claim for late payment commission is declared null and abusive, determining that such nullity results in the inadmissibility of the claim. (...)”

Despite this, the claimed debt remained registered in the delinquency file by the respondent until 22/07/2022, when it was subsequently removed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/15

motivated because on 07/18/2022, it formalized through a private sale contract and elevated to public before the Notary of the Illustrious College of Madrid Mr. A.A.A., the assignment of the credit to the entity CABOT, which in turn would register the claimant's data in the ASNEF file for the same amount, as evidenced by the request from EQUIFAX-IBERICA dated 09/09/2022.

Therefore, the debt assigned in the aforementioned legal transaction was not updated without the respondent recalculating it; the respondent has stated that they informed CABOT that the debt was disputed, but both the assigned amount and the amount included in ASNEF by the assignee remained the same.

Furthermore, from the date of notification of the aforementioned Order 07/01/2022, until 07/22/2022 (after the date of the credit assignment), the debt was registered in the delinquency file by the respondent without the amount being recalculated and communicated to the Experian file, as they stated in a written document dated 01/27/2023: “That in July 2022, the month in which the aforementioned credit assignment operation was carried out, ONEY excluded all customers who were part of this assignment from the solvency files in which they had been included. Specifically, ONEY proceeded to deregister Mrs. B.B.B. from the mentioned solvency file of Experian on July 22, 2022 (as could be proven, if necessary, through consultation with the Experian files).”

Likewise, in a written document dated 06/08/2023, the respondent confirmed the facts stating that “However, although it is true that Oney did not act diligently in this case, reducing the amount of the debt by virtue of the provisions in the Order of the Court, since the late payment fee was declared null and abusive, it is also true that the customer's debt remained real, certain, due, and enforceable, although not for the indicated amount.”

And that “Regarding the assignment of information related to this debt by Oney to the entity Cabot, it is true that the amount should have been reduced by 240 euros, due to the court's declaration of nullity of the late payment fee...”

3. The respondent in allegations to the Proposal for Resolution has stated that when the credit assignment contract was formalized, the assignee was informed that some credits were considered contentious, including the credit affecting the claimant, and proof of this is the Excel table that was

attached to the allegations to the initiation agreement of the sanctioning procedure and that access was granted to the buyer to the data and information, including the judicial Order that was not final since an appeal could be filed against it within 20 business days; furthermore, since the judicial resolution had as a consequence the need to rectify the data owned by the claimant in the solvency file, it seems reasonable that the passage of fifteen business days from the receipt of the judicial resolution until the effective deregistration of their data in the file is more than a reasonable period to understand that the obligations regarding the rectification of the aforementioned data have been fulfilled.

However, regarding this last argument, it must be dismissed since the principle of accuracy requires that the data controller...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/15

minimize the risk of inaccuracy, especially considering that the filing of a possible appeal did not have suspensive effects, as well as the harm that maintaining the claimant's data in a credit information system posed to their rights and freedoms. In any case, the defendant is not being attributed a violation of the GDPR solely for maintaining the debt in the solvency file due to an inaccurate debt according to the Order issued on 06/20/2022 by the Court of First Instance No. 14 of ***LOCALITY.1. It is true that the defendant proceeded to remove the data from the solvency file, but it is also true that this removal was motivated by the formalization of the contract for the sale of delinquent credits carried out with Cabot on 07/18/2022, delinquent credits which included the one related to the claimant. Therefore, the assignment of the credit that the defendant maintained with the claimant in the legal transaction formalized on 07/18/2022 with Cabot, which he subsequently included in the ASNEF file, is also not in accordance with the regulations on the protection of personal data, Article 5.1.d) of the GDPR.

VI

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factors applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement. In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The link of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

- In accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement classified in Article 83.5.a) and Article 5.1.d) of the GDPR for which the defendant is held responsible, an initial assessment considers the following factors to be concurrent:

The aggravating circumstances are:

The nature and gravity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as accuracy, which the regulation penalizes with the greatest severity; it should not be forgotten that the debt was not determined in terms of its certainty since the Court had declared certain concepts of it abusive, so that after the judicial resolution it was necessary to recalculate it (Article 83.2.a) of the GDPR).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/15

The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the claimed entity, the processing of personal data is essential; therefore, given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The intent or negligence in the infringement. In this case, there is a serious lack of diligence in the actions of the claimed entity, as the debt was assigned and included in solvency files by the assignee without its amount being accurate, as it was not determined in terms of its exactness. Also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the validity of the GDPR, its pronouncement is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).

Therefore, in accordance with the above, a sanction of €50,000 (fifty thousand euros) is deemed

appropriate for the infringement of Article 5.1.d) of the GDPR.

VII

Having confirmed the infringement, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

In this case, the claimed entity is required to demonstrate, within two months from the notification of this resolution:

- The adoption of adequate measures to prevent future incidents like those that have led to the opening of this sanctioning procedure, violating the principle of data accuracy, Article 5.1.d) of the LOPGDD, as a result of the assignment of the same to a third party, linked to a debt, which in a judicial ruling was declared to contain abusive interests, with no certainty about it and having to be recalculated.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/15

as an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, such conduct may lead to the initiation of further administrative sanctioning proceedings.

III

The appellant in their appeal submission considers that they acted diligently in their obligation to rectify the claimant's data following the Order that declared the clauses related to the interest applied to their debt as null and abusive.

Such argumentation cannot be accepted or admitted; it is true, as the appellant points out, that they informed Cabot that there was a litigation procedure and the amount of the debt; however, the mentioned amount of €780.80 is the same amount for which the respondent included the data in the solvency files, without it being recalculated.

The judicial Order issued on 20/06/2022, notified to the respondent on 01/07/2022, indicated in addition to declaring the claim for late payment commission null and abusive, that such nullity led to the inadmissibility of the claim, which: “This resolution is not final; against it, an APPEAL can be filed without suspensive effects before the Provincial Court of Las Palmas. The appeal shall be filed by means of a written submission presented in this Court within a period of TWENTY WORKING DAYS counted from the day following the notification, limited to citing the appealed resolution, expressing the intention to appeal, with an indication of the rulings being challenged (article 457.2 LECn), prior to the deposit in the account of this court of the deposit referred to in the fifteenth additional provision of the LOPJ, according to the amendment made by LO 1/2009 of November 3.”

Therefore, the filing of the appeal did not produce suspensive effects, that is, it did not suspend or halt the execution of the questioned resolution during the time it took to resolve.

This effect had the consequence that the respondent could in no case assign the credit for the amount for which it was assigned: €780.80, but for the amount indicated in the Order (always subject, in any case, to what may subsequently be established in the resolution of the appeal).

However, the appellant in their allegations has stated that “it was decided not to appeal by Oney, an internal order was given to remove the data from the file – an administrative procedure that is not carried out by the legal advisory, but by a different administrative department, the file was informed (note that requests for modification of the data contained in the solvency files are sent weekly in a batch file to the file manager) and the data was removed.”

Now, the issue raised is not whether the respondent was negligent or diligent in addressing the

solvency file to cause the removal of the claimant's personal data therein, a removal that, as indicated in the Resolution, was motivated as a consequence of the formalization of the contract for the sale of delinquent credits carried out with Cabot on 18/07/2022, delinquent credits among which was the one related to the claimant.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/15

The issue to be resolved is whether, in any case, the defendant was negligent or diligent at the time of the assignment of the credit that the defendant held with the claimant in the legal transaction formalized on 07/18/2022 with Cabot, and which he subsequently included in the ASNEF file, was or was not in accordance with the regulations on personal data protection, Article 5.1.d) of the GDPR. It is evident that the conduct displayed by the defendant infringed the aforementioned article, as the assignee included the claimant's data in the ASNEF file on 09/09/2022 for an amount of €780.80, which proves that the assigned debt was in no case rectified and recalculated in the manner pronounced in the judicial resolution.

Therefore, after the judicial order declaring certain commissions abusive was issued, the appellant did not recalculate the debt and maintained the claimant's data in the delinquency file without updating it from the date on which the Order was notified to him, 07/01/2022, until 07/22/2022; subsequently, the debt was assigned as a result of the legal transaction with Cabot on 07/18/2022 for the same amount without it having been updated. This lack of updating led the assignee to include the claimant's data in the delinquency file for the assigned amount, regarding which the judicial order had pronounced, which was not the correct amount and could be nonexistent as claimed by the lawyer of the claimant party and the claimant herself in her complaint.

Therefore, it follows that the behavior carried out by the defendant constitutes a violation of Article 5.1.d) of the GDPR, an infringement classified in Article 83.5.a) of the GDPR.

- Secondly, the appellant expresses his disagreement with the interpretation that the sanctioning resolution makes of the criteria for the graduation of sanctions.

It should be noted that Article 83.1 of the GDPR states that "Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive."

The fines, as deduced from the provision, must be effective, proportionate, and dissuasive for the achievement of the purpose intended by the GDPR.

For this system to function with all its guarantees, it is necessary that several elements are deployed in an integral and complete manner. The application of rules external to the GDPR regarding the determination of fines in each of the Member States applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR - or in the LOPDGDD in the Spanish case as allowed by the GDPR itself - would undermine the effectiveness of the system, which would lose its meaning, its teleological purpose, the will of the legislator, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and dissuasive. And in this way, the interested parties would also be deprived of the guarantee.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/15

effective protection of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished, which would be contrary to the spirit of the GDPR.

The GDPR is equipped with its own principle of proportionality that must be applied in its strict terms. In Title VIII of the LOPDGDD relating to "Procedures in case of possible violation of data protection

regulations," Article 63, which opens the Title, states in its second paragraph that "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures." While there is a clear reference to the LPACAP, there is absolutely no subsidiary application regarding the LRJSP, which does not contain any provision related to any administrative procedure.

Just as the AEPD is not applying the aggravating and mitigating factors provided for in Article 29 of the LRJSP, since the GDPR establishes its own, therefore, there is no legal gap or subsidiary application of the same.

Regarding the principle of proportionality of sanctions, the A.N. in numerous rulings has indicated that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that every sanction must be determined in accordance with the seriousness of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, the resolution does not violate the principle of proportionality in determining the imposed sanction, resulting in a measured and proportionate response to the seriousness of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially considering that the entity's turnover for 2022 amounts to €39,957,000, and the amount to which the sanction may ascend in accordance with the provisions of Article 83.5.a) of the GDPR, which provides for very serious infringements of Article 5.1.d) "... administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

Based on the above, regarding the aggravating circumstances:

The application of the aggravating factor provided for in Article 83.2.a) is in line with the seriousness of the infringement committed by the respondent, violation of the principle of accuracy; with

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/15

the damages caused, since the debt was claimed in monitoring proceedings, an order was issued by the Court of First Instance No. 14 of ***LOCALITY.1, on 21/06/2022, annulling certain commissions as abusive.

Despite this, as already pointed out in the contested resolution, the debt was not recalculated and the credit assigned in the private sale contract signed with CABOT, which led to the re-registration of the claimant's data in the ASNEF file for the same amount.

Such conduct cannot be considered as the respondent claims to be absolutely involuntary; on the contrary, since the order had been notified declaring the commissions illegal, it determined its non-suspensive nature in case of appeal, which was ultimately not filed, etc.

Regarding the intentional or negligent nature of the infringement regulated in Article 83.2.b) of the GDPR, it is directly connected with what was expressed in the previous paragraphs; moreover, it is the respondent themselves who qualifies as negligent when in a document dated 08/06/2023, they stated that "...Oney did not act diligently in this case, reducing the amount of the debt in accordance with the provisions of the Court's Order, given that the late payment commission was declared null and abusive..." And "As for the transfer of information regarding this debt by Oney to the entity Cabot, it is true that the amount should have been reduced by 240 euros..."

Therefore, the arguments put forward by the appellant cannot be accepted.

IV

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ONEY SERVICIOS FINANCIEROS EFC, S.A. against the resolution of this Spanish Agency for Data Protection issued on 23/10/2023, in file EXP202213626.

SECOND: TO NOTIFY this resolution to ONEY SERVICIOS FINANCIEROS EFC, S.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

If the notification date falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es